NORTHGATE
MANAGED IT SERVICES

Order Form No. _____ (office use)

MANAGED SERVICES ORDER FORM

This Order Form is entered into between Northgate Managed IT Services, LLC ("Northgate") and the customer identified below ("Customer"), and is governed by the Northgate Managed Services Terms attached (the "Terms"). Together the Order Form and the Terms form the "Agreement".

Customer legal name		**Billing address**	
Primary contact		**Contact email**	
Service start date		**Covered users**	
Monthly fee (USD)		**Initial term**	36 months

Service tier (select one)

[ ] Essentials [ ] Professional [ ] Enterprise

Essentials covers remote help desk (business hours), patching and monitoring for covered users. Professional adds on-site support, backup management and quarterly business reviews. Enterprise adds 24x7 incident response, a named virtual CIO and annual security assessments. Per-user pricing applies above the covered user count at the rates in the Terms.

By signing below, Customer agrees to this Order Form and the Terms. This Order Form is effective on the date of the last signature.

CUSTOMER

Authorized Signature: _____

Printed Name: _____

Title: _____

Date: _____

NORTHGATE MANAGED IT SERVICES, LLC

Authorized Signature: _____

Printed Name: _____

Title: _____

Date: _____

NORTHGATE MANAGED SERVICES TERMS

1. Services. Northgate will provide the managed services for the tier selected in the Order Form (the "Services") to the devices and users listed in Northgate's onboarding inventory. Northgate will keep the inventory current as Customer adds or retires devices. Services exclude hardware repair, software development, training, and work on systems not in the inventory, which Northgate may perform at its then-current time-and-materials rates.

2. Onboarding. During the first thirty (30) days Northgate will install its monitoring agent, document the Customer's network, collect administrator credentials into Northgate's encrypted vault and remediate critical findings. Remediation of non-critical findings is quoted separately.

3. Service levels. Northgate will respond to and work on incidents according to the priority table below. Response time runs from the creation of a ticket through Northgate's portal, email or phone line. Target resolution times are goals, not guarantees.

Priority	Example	Response	Target resolution
P1 – Critical	Site-wide outage	30 minutes	4 hours
P2 – High	Server or VPN down	1 hour	8 hours
P3 – Normal	Single user issue	4 business hours	2 business days
P4 – Request	New user, change	1 business day	5 business days

4. Service credits. If Northgate misses the P1 response time more than twice in a calendar month, Customer is entitled to a credit of 5% of that month's fee for each additional miss, up to 25% of the monthly fee. Credits are Customer's sole remedy for missed service levels and must be requested within thirty (30) days.

5. Customer responsibilities. Customer will maintain vendor-supported hardware and software, keep valid licenses for all software Northgate manages, designate authorized contacts who may request changes, and promptly tell Northgate of any security incident it becomes aware of. Customer remains responsible for decisions about its own data, users and business processes.

6. Security. Northgate will maintain a written information security program with administrative, technical and physical safeguards appropriate to the Services, including multi-factor authentication on all Northgate administrative access, background checks for technicians, and annual security awareness training for its staff. Northgate will notify Customer without undue delay, and in any event within seventy-two (72) hours, after confirming a security incident affecting Customer data.

7. Backups. Where backup management is included, Northgate will monitor scheduled backup jobs, investigate failures, and perform a test restore of a sample file set each quarter. Northgate does not guarantee the recoverability of data that was not included in the backup scope Customer approved.

8. Third-party products. Northgate may resell or administer third-party software and cloud subscriptions. Those products are subject to the vendor's own terms, which Customer accepts by using them. Northgate passes through any vendor warranties but gives none of its own for third-party products.

9. Fees and payment. The monthly fee is invoiced in advance on the first day of each month. Per-user charges above the covered user count are invoiced in arrears. Invoices are due net fifteen (15) days. Northgate may increase fees once per year on sixty (60) days' notice by no more than the greater of 5% or the change in CPI-U. Northgate may suspend non-critical Services if an invoice is more than thirty (30) days overdue.

10. Term and renewal. The Agreement starts on the service start date and continues for the initial term, then renews for successive one-year terms unless either party gives notice of non-renewal at least sixty (60) days before the end of the current term. Customer may terminate for convenience during the initial term by paying an early termination fee equal to 50% of the fees for the remainder of the initial term.

11. Transition. On expiry or termination Northgate will provide reasonable transition assistance for up to thirty (30) days, return Customer credentials and documentation, and remove its monitoring agents. Transition work beyond four hours is billed at time-and-materials rates.

12. Non-solicitation. During the term and for twelve (12) months afterward, Customer will not hire any Northgate technician who worked on Customer's account without paying a placement fee equal to 30% of that technician's first-year base salary.

13. Confidentiality. Each party will protect the other's confidential information with reasonable care, use it only to perform or

receive the Services, and disclose it only to personnel and contractors who need to know it and are bound by written confidentiality duties. Credentials and network documentation are Customer confidential information.

14. Warranty and disclaimer. Northgate warrants that it will perform the Services in a workmanlike manner consistent with industry practice. Except for that warranty, the Services are provided as is, and Northgate disclaims all implied warranties, including merchantability and fitness for a particular purpose. Northgate does not warrant that the Services will prevent all security incidents.

15. Limitation of liability. Neither party is liable for indirect, special, incidental or consequential damages, lost profits or lost data. Each party's total liability under the Agreement is limited to the fees paid in the twelve (12) months before the claim. These limits do not apply to Customer's payment obligations or to a party's breach of confidentiality.

16. Insurance. Northgate will carry technology errors and omissions and cyber liability insurance of at least $2,000,000 per claim and commercial general liability insurance of at least $1,000,000 per occurrence.

17. Force majeure. Neither party is liable for delay caused by events beyond its reasonable control, including utility or carrier failures, natural disasters, war, labor disputes and acts of government, other than payment obligations.

18. Governing law. The Agreement is governed by the laws of the State of Ohio. The parties submit to the jurisdiction of the state and federal courts located in Franklin County, Ohio.

19. Entire agreement. The Order Form and these Terms are the entire agreement between the parties about the Services and supersede any proposals or purchase order terms. If the Order Form conflicts with these Terms, the Order Form controls. Amendments must be in writing and signed by both parties.